TSITSI NYONI
versus
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 22 January & 20 April 2026

Court Application

T. L Mapuranga, for the applicant
T. E Kumema, for the 1st respondents

MANZUNZU J

INTRODUCTION

(1) This is a court application for review in terms of Rule 62 of the High Court Rules, 2021.

The applicant seeks relief in the following terms;

1. "The applicant's application for review be and is hereby granted.
2. The respondent's decision to seize the applicant's motor vehicle be and is hereby reviewed and set aside.
3. The respondent's decision dated 4 April 2025 in relation to an appeal by the applicant be and is hereby reviewed and set aside.
4. The respondent's decision dated 11 February 2025 in relation to an appeal by the Applicant be and is hereby reviewed and set aside.
5. The decision of the respondent dated 20 September 2024 in relation to an appeal by the applicant be and is hereby reviewed and set aside.
6. The decision of the respondent dated 20 September 2024 re imposing the applicant's liability to pay duty which had been suspended on importation of a Mercedes Benz GLE 350d 4MATIC (registration number AGH 5484) be and is hereby reviewed and set aside.
7. The respondent shall pay the applicant's costs."

BACKGROUND

(2) The applicant is a female adult with full legal capacity to sue or be sued.

(3) The respondent is the Zimbabwe Revenue Authority (ZIMRA), and it is the fiscal revenue collecting authority of the Government of Zimbabwe.

(4) The applicant imported a motor vehicle, a Mercedes Benz GLE 350d with registration AGH5484 in December 2022. The applicant utilised the returning resident's rebate on duty payable. The rebate resulted in the suspension of the applicant's liability in terms of the Customs and Excise (Suspension) Regulations 2003 (S.I 257 of 2003).

(5) In January 2024, the applicant left Zimbabwe for South Africa. The applicant alleges she went to take care of her ill sister, who later passed on 14 August 2024. The applicant left the imported motor vehicle parked at No 6 Saligna Lane Philadelphia Borrowdale.

(6) The applicant also alleges that she also fell sick in February 2024 and needed constant medical attention and only became fit to travel in August 2024.

(7) The applicant returned to Zimbabwe on 23 August 2024. Upon the applicant's return, on 28 August 2024, she attempted to renew her motor vehicle licence disk only to be informed that the vehicle had been flagged by the respondent.

(8) The respondent had carried out a post-clearance verification on all motor vehicles imported under the immigrant rebate. A follow up was conducted on the applicants 2018 Mercedes Benz GLE 350d with registration number AGH5484 imported on Bill of Entry ZWHR N18641 of 21 December 2022 by the respondent.

(9) The respondent's officers had tried to call the applicant and had also visited number 6 Saligna Borrowdale, Harare. The respondent after failing to reach the applicant then flagged the applicant's vehicle.

(10) After realising that she could not renew her vehicle licence, the applicant visited the respondent's offices where she was advised by the respondent that her vehicle was liable to

seizure as she left the country for a period of more than six months within 24 months of clearance of her motor vehicle under the suspension of duty.

(11) The respondent notified the applicant that she had left Zimbabwe for South Africa without any written authority from the respondent's Commissioner of Customs and Excise or payment of duty in terms of the Regulations which govern immigration rebates.

(12) The applicant was issued with Notice of seizure number 04063K of August 2024.

(13) The applicant then made representations to the respondent's regional manager through a letter dated 20 September 2024. The regional manager-imposed release conditions, payment of duty amounting to USD 23 875,34, 100% fine and storage charges.

(14) The applicant appealed to the Commissioner, Customs and Excise, who upheld the decision of the regional manager with regards to payment of duty, interest and storage charges but the Commissioner set aside 100% fine and reduced the penalty from 100% to 50%.

(15) The applicant now seeks the court to review the decision by the Commissioner, Customs and Excise dated 20 September 2004. The application for review is made on the following grounds:

1. "The respondent committed a gross irregularity in seizing the applicants motor vehicle prior to hearing her on the question of re imposing suspended duty.
2. The respondent acted without jurisdiction in seizing the applicant's motor vehicle prior to having re imposed the duty which had been suspended on its importation.
3. The respondent committed a gross irregularity in demanding payment of US$ 23 875.34 as the total payable when the duty suspended on importation of the vehicle by the applicant as a returning immigrant had been US$20 095.52.
4. The respondent committed a gross irregularity, and acted without jurisdiction, in demanding payment of a penalty when the law upon which it was acting does not allow imposition of a penalty under such circumstances.
5. The respondent committed a gross irregularity in demanding payment of duty which had been suspended from the applicant when the applicant did not depart Zimbabwe with an intention to stay for more than a month but had to stay for more than six months due to her illness.
6. The respondent committed a gross irregularity in imposing greater monetary burdens on the applicant in respect of interest without affording the applicant an opportunity to make representations of these issues.

7. The respondent committed a gross irregularity in imposing interest on the applicant from the date of importation of the motor vehicle when there was no liability to pay duty between the date of importation and the date when liability to pay the suspended duty was reinstated."

PRELIMINARY POINT

(16) The respondent raised a preliminary objection that the application does not comply with section 196 of the Customs and Excise Act. The respondent states that in terms of section 196 of the Customs and Excise Act, the applicant ought to give 60 days' notice before instituting any legal proceedings against the respondent. The respondent states that due to this fact the matter ought to be struck off with costs.

(17) The applicant argues that this application is properly before the court and the notice in terms of the State Liabilities Act is applicable to claims for money or delivery or release of any goods. The applicant argues that the claim before the court is for review and it does not seek the delivery of anything or payment of money.

ISSUE FOR DETERMINATION

(18) The issue for determination is whether or not the application for review is improperly before the court for non-compliance with the provisions of section 196 of the Customs and Excise Act as read with section 6 of the State Liabilities Act. Put differently, is an application for the review of the decision of the Commissioner subject to the 60 day notice required under section 196 of the Customs and Excise Act as read with section 6 of the State Liabilities Act?

STATUTORY PROVISIONS

(19) Section 196 (1) of the Customs and Excise Act [*Chapter 23:07*] provides that:

"196 *Notice of action to be given to officer*

(1) No civil proceedings shall be instituted against the State, the Commissioner or an officer for anything done or omitted to be done by the Commissioner or an officer under this Act or any other law relating to customs and excise until sixty days after notice has been given in terms of the State Liabilities Act [*Chapter 8:15*]." (*emphasis is mine*).

(20) Whereas section 6 of the States Liabilities Act [*Chapter 8:15*] provides:

"6 *Notice to be given of intention to institute proceedings against State and officials in respect of certain claims*

(1) Subject to this Act, no legal proceedings in respect of any claim for-
(a) money, whether arising out of contract, delict or otherwise; or
(b) the delivery or release of any goods;
and whether or not joined with or made as an alternative to any other claim, shall be instituted against-
(i) the State; or
(ii) the President, Vice – President or any Minister or Deputy Minister in his official capacity; or
(iii) any officer or employee of the State in his official capacity:

unless notice in writing of the intention to bring the claim has been served in accordance with subsection (2) at least sixty days before the institution of the proceedings." (*emphasis is mine*).

DECIDED CASES

(21) The Supreme Court in *Quest Manufacturing (Pvt) Ltd* v *ZIMRA & Ors* SC51-24 held that the High Court had not adequately discussed the objection *in limine* relating to the requirement of giving notice in terms of s196 of the of the Customs and Excise Act. The court allowed the appeal and directed that the matter be remitted to the High Court for a hearing *de novo* before a different judge.

(22) Following a remittal from the Supreme Court the High Court in *Quest Motor Manufacturing (Pvt) Ltd* v *Zimbabwe Revenue Authority & Ors* HH 314 -24 had to determine whether or not the application for review must comply with the provisions of s 196 (1) of the Customs and Excise Act and s 6 of the State Liabilities Act. The Court found that:

"In the end, there is no gainsaying that much as review applications could be characterised as civil proceedings their nature and the law that governs their filing in the High Court, extricate and sets them apart from the rest of civil proceedings which are shackled by the requirement for notice in terms of s 196(1) of the Customs and Excise Act [*Chapter 23:02*]. I reach the

> conclusion therefore that the preliminary objection that this application is not properly before this court for want of compliance with the provisions of s 196(1) of the Act and s 6 of the State Liabilities Act is without merit. It is accordingly dismissed."

(23) In *Machacha* v *Zimra* HB 186/11, the court explained the reason for the need to give the required notice of intention to sue. The learned judge stated:

> "The applicant ignored this provision at his own peril. The primary objective of the provision is provision of timely opportunity to the Zimbabwe Revenue Authority (ZIMRA) to know and therefore to investigate the material facts upon which its actions are challenged and to afford ZIMRA opportunity of protecting itself against the consequences of possible wrongful conduct by tendering early amends as envisaged by the Act."

(24) The supreme court in *Care International* v *Zimra & Ors* SC76/17 noted the sentiments of the judge in *Machacha* v *Zimra* (*supra*) and noted that:

> "From the above authorities it becomes clear that it is not just the failure to give notice that a court can take cognizance of. The failure to provide sufficient detail on the cause of action in compliance with the requirements of provision may also result in the court declining to hear the plaintiff or applicant as the case may be. This is primarily to do with the purpose underlying the need for notice which is to give the revenue collector sufficient facts to allow an investigation within reasonable time to make a decision on whether to settle the matter or defend the claim.
>
> The provisions of s 196 (1) of the Customs and Excise Act [Chapter 23:02] and the authorities cited above are clear. Before making the court application the applicant is mandated to comply with requirements set under s 196. The provision is peremptory hence the issue of the required notice cannot be waived. The applicant has not complied with the law. Therefore, the matter must be dismissed."

(25) The court in *Chinanzvavana* v *The Commissioner General of the Zimbabwe Revenue Authority & Anor* HH-743-23 held that s196(1) of the Customs and Excise Act is a peremptory provision. It held that:

> "The above mentioned provision is a peremptory provision if one considers the use of the word "shall" which must be adhered to. It is trite that failure by the applicant to adhere to the provision and failure to issue notice and waiting out the notice period is fatal to the applicant's application."

APPLICATION OF THE LAW TO THE FACTS

(26) By its very nature an application for review falls within the ambit/armpit of civil proceedings. From the authorities cited above the primary purpose for notice is to give the revenue collector sufficient facts to allow an investigation within reasonable time to decide on whether to settle the matter or defend the claim.

(27) Heavy reliance was put on the High Court case in the *Quest Manufacturing (Pvt) Ltd supra* by Mr Maparunga to support the proposition that while an application for review may be classified as civil proceedings, it cannot be subject to notice as required by section 196 of the Act.

(28) Ms Kamema argued otherwise. She relied on the Supreme Court case of *Care International* v *Zimra, supra* which she said takes precedence over the High Court cases.

(29) The present case is on all fours with the *Quest Manufacturing* case. While Ms Kamema is correct on the principle of stare decisis, however, the Care International case is distinguishable from the present case as it was distinguished in the Quest Manufacturing case when the court stated; "It was only at the hearing that he referred the court to *Care International* which the applicant had also cited. I have given due consideration to that authority and the various others related to. They appear distinguishable from the dispute before me. Those authorities largely dealt with the purpose of giving the s 196(1) notice, the requirements for giving valid notice among others. They did not specifically deal with the question whether or not review proceedings are civil proceedings and if they are, whether their institution must be pursuant to the giving of notice."

(30) This court rides on the authority of this Honourable court's decision in the *Quest Manufacturing* case which ruled that s196(1) of the Customs and Excise Act does not require the giving of notice for every proceeding under the Act, particularly so, in review applications. This is because at the time the application for review is filed, the respondent is fully aware of the applicant's complaint which gives the respondent ample time to consult

and take a position which position would have already been taken given the decision under challenge. The preliminary point is bound to fail. The matter cannot be said to be improperly before the court.

DISPOSITION

The preliminary point raised by the respondent that the applicant ought to have given notice in terms of s196 of the Customs and Exercise Act as read with s6 of the States Liabilities Act no be and is hereby dismissed with costs.

MANZUNZU J:……

……., applicant's legal practitioners

……., first respondent's legal practitioners